

25STCV15470 25STCV15470

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV15470 Hearing Date: July 17, 2026 Dept: 510

No.

8 - Jeri Schwebs v. David Azizi, et al.

Defendants'

Motion for Order Compelling Walmart, Inc.'s Compliance with Subpoena for
Production of Business Records

Defendants

David Azizi and Law Offices of David Azizi move to compel nonparty Walmart Inc. ("Walmart") to comply with a deposition subpoena for production of business records. There was no opposition filed in response to the motion.

Under

California law, a party may obtain discovery from a nonparty through a subpoena for documents or other materials. (CCP §§ 2020.010, 2020.020.) The court may compel compliance with a subpoena upon motion if the production sought is subject to discovery. (CCP §§1987.1, 2025.480(b).)

The

Court cannot order the relief Defendants seek here. Defendants did not properly serve the moving papers on Walmart. "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)

Defendants

did not personally serve this motion on Walmart as required, and provide no evidence that Walmart agreed to accept service by mail or electronic service.

Disposition

Defendants

David Azizi and Law Offices of David Azizi's motion to compel nonparty Walmart Inc. to comply with a deposition subpoena for production of business records is denied without prejudice.